

24VECV03748 24VECV03748

County: los-angeles

Division: Civil Law and Motion

Department: 107

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Case Number: 24VECV03748 Hearing Date: September 3, 2026 Dept: 107

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

COUNTY OF LOS ANGELES

NORTHWEST DISTRICT

Christina

Bennett,

Plaintiff,

v.

Sherman Terrace, LLC,

et al.

Defendants.

Case Number Department

24VECV03748 107

COURT'S [TENTATIVE]

ORDER RE:

Motion to Continue Action

by Decedent's Successor in
Interest

[THE FOLLOWING IS A TENTATIVE RULING IN THE ABOVE CASE]:

Deny

I.

BACKGROUND

On

February 24, 2024, Plaintiff Christina Bennett ("Plaintiff") fell and sustained injuries. (Complaint p. 5.)

On

August 7, 2024, Plaintiff filed a complaint against Defendants Sherman Terrace, LLC, Lori Hall, Lori Hall Trust, and Does 1 to 100, alleging causes of action for: (1) premises liability; (2) and general negligence.

On

January 28, 2025, the court, pursuant to an oral request made by Plaintiff, dismissed Defendant Lori Hall Trust. (01/28/25 Order of Dismissal.)

On

July 9, 2026, Plaintiff's counsel filed a notice of death of Plaintiff.

On

July 27, 2026, Debra Anne Bennett ("Bennett"), filed a motion after death of Plaintiff to continue action by decedent's successor in interest under C.C.P. section 377.31 (the "Motion"). On August 21, 2026, Defendants Sherman Terrace, LLC and Lori Hall ("Defendants") filed an opposition. On August 27, 2026, Bennett filed a reply.

II.

STANDARD

"The

court in which an action is commenced or continued under this article may make any order concerning parties that is appropriate to ensure proper administration of justice in the case, including appointment of the decedent's

successor in interest as a special administrator or guardian ad litem.” (Code Civ. Proc., § 377.33.)

“On motion after the death of a person who commenced an action or proceeding, the court shall allow a pending action or proceeding that does not abate to be continued by the decedent's personal representative or, if none, by the decedent's successor in interest.” (Code Civ. Proc., § 377.31.)

Code
of Civil Procedure section 377.32 states:¿

(a)
The
person who seeks to commence an action or proceeding or to continue a pending action or proceeding as the decedent's successor in interest under this article, shall execute and file an affidavit or a declaration under penalty of perjury under the laws of this state stating all of the following:¿

(1)
The
decedent's name.¿

(2)
The
date and place of the decedent's death.¿

(3)
“No
proceeding is now pending in California for administration of the decedent's estate.”¿

(4)
If
the decedent's estate was administered, a copy of the final order showing the distribution of the decedent's cause of action to the successor in interest.¿

(5)

Either

of the following, as appropriate, with facts in support thereof:¿

(A)

“The

affiant or declarant is the decedent’s successor in interest (as defined in Section 377.11 of the California Code of Civil Procedure) and succeeds to the decedent’s interest in the action or proceeding.”¿

(B)

“The

affiant or declarant is authorized to act on behalf of the decedent’s successor in interest (as defined in Section 377.11 of the California Code of Civil Procedure) with respect to the decedent’s interest in the action or proceeding.”¿

(6)

“No

other person has a superior right to commence the action or proceeding or to be substituted for the decedent in the pending action or proceeding.”¿

(7)

“The

affiant or declarant affirms or declares under penalty of perjury under the laws of the State of California that the foregoing is true and correct.”¿

(b)

Where

more than one person executes the affidavit or declaration under this section, the statements required by subdivision (a) shall be modified as appropriate to reflect that fact.¿

(c)

A

certified copy of the decedent’s death certificate shall be attached to the affidavit or declaration.¿

III.

DISCUSSION

Bennett

moves for an order authorizing Bennett to continue as Plaintiff's (hereinafter, "Decedent") successor in interest. (Motion p. 2.) Bennet submits a declaration with the Motion. Bennett states she is Decedent's mother. (Bennett Declaration ¶ 1.) Bennett states Decedent died on May 15, 2026, in Van Nuys, California. (Bennett Declaration ¶ 3.) Bennett states "[n]o proceeding is now pending in California for administration of the Decedent's estate." (Bennett Declaration ¶ 4.) Bennett also states that "Decedent's estate consists entirely of the claims and causes of action asserted in the above-captioned action and is not subject to probate administration." (Bennett Declaration ¶ 5.) Bennett states she is Decedent's successor in interest and succeeds Decedent's interest in this matter. (Bennett Declaration ¶ 6) Finally, Bennett states "[n]o other person has a superior right to commence the action or proceeding or to be substituted for the Decedent in the pending action or proceeding" and provides a certified copy of Decedent's death certificate. (Bennett Declaration ¶¶ 3, 7.)

In

opposition, Defendants state Bennett has not shown she is Decedent's successor in interest and the evidence attached to the Motion raises questions because the death certificate identifies Decedent's other parent, Jeffrey Bennett. (Opposition p. 2.) Defendants state that "[t]he Motion is silent as to whether Mr. Bennett survives the Decedent or clarify his interest in the Decedent's estate." (Opposition p. 2.)

In

reply, Bennett submits a declaration by Jeffrey Bennett stating he is Decedent's father but consents to Bennett continuing this action as Decedent's successor in interest. (Jeffrey Bennett Declaration ¶¶ 1, 6.)

Code

of Civil Procedure section 377.32, subdivision (a)(7) requires the person seeking to continue the matter to declare "under penalty of perjury under the laws of the State of California that the foregoing is true and correct."¿

Bennett

states in the declaration that it is made "under penalty of perjury under the laws of the State of Nebraska . . ." (Bennett Declaration p 2.) Bennett's declaration does not comply with Code of Civil Procedure section 377.32 because it is not made under penalty of perjury under the laws of the State of California.

Further,

Code of Civil Procedure section 2015.5 likewise requires declarations, if executed within this state, to “certify (or declare) under penalty of perjury that the foregoing is true and correct” or, if executed at any place, to “certify (or declare) under penalty of perjury under the laws of the State of California that the foregoing is true and correct[.]”

Jeffrey

Bennet states in the declaration it is made “under penalty of perjury under the laws of the State of Nebraska . . .” (Jeffrey Bennett Declaration p 2.) This statement does not comply with Code of Civil Procedure section 2015.5.

IV.

CONCLUSION

For

the foregoing reasons, the Motion is denied.

Dated: September

3, 2026 _____ Hon. Eric Harmon

Judge of the Superior Court